

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x
JAMEAL MARLON CEPHAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and MARIO GUERRERO,

Defendants.
-----x

Index No.

Date Filed:

Plaintiff designates: Kings
County as the place of trial

The basis of venue is:
Location of accident

S U M M O N S

Location of accident:
1778 Utica Avenue between Avenue J
and Avenue I
Brooklyn, New York 11234

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 27, 2024

REDMOND LAW FIRM, PLLC

By: _____



Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Defendants' Addresses:

THE CITY OF NEW YORK

Comptroller of The City Of New York
Municipal Building
1 Center Street, Room 1225
New York, New York 10007

and

New York City Corporation Counsel
100 Church Street Station, 4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10038

MARIO GUERRERO

THE NEW YORK CITY POLICE DEPARTMENT (Place of employment)
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x
JAMEAL MARLON CEPHAS,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and MARIO GUERRERO,

Defendants.

-----x

Plaintiff, by his attorneys, REDMOND LAW FIRM, PLLC complaining of the defendants, all upon information and belief, respectfully states and alleges as follows:

1. At all times herein mentioned, plaintiff, JAMEAL MARLON CEPHAS, was and still is a resident at 1218 Schenectady Avenue, County of Kings, City of Brooklyn and State of New York.

2. That at all times herein mentioned, the occurrence that gave rise to this action occurred in the County of Kings, City of Brooklyn and State of New York.

3. That upon information and belief, at all times herein mentioned, the defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation duly organized and existing under and by the virtues of the laws of the State of New York.

4. That at all times herein mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYCPD") was a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. Within ninety days (90) after the claim herein sued upon arose, the plaintiff, JAMEAL MARLON CEPHAS (then claimant) caused a Notice of Claim, in writing, to be

served upon defendants, CITY and NYCPD, in accordance with Section 50-e of the General Municipal Law.

6. Although more than thirty (30) days have elapsed since service of such Notice of Claim, defendants, CITY and NYCPD have neglected and refused to pay said claim or adjust same.

7. The hearing has either been held or scheduled or waived. Or if not held, plaintiff agrees to hold said hearing if noticed within a reasonable amount of time.

8. This action is commenced within one (1) year and ninety (90) days from February 13, 2024, the date the accident as herein set forth occurred.

9. That on February 13, 2024, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.

10. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.

11. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City of Police Department and employed the officer of said department.

12. That at all herein mentioned, the Defendant, MARIO GUERRERO, (hereinafter "GUERRERO") was and still is a resident of the State of New York.

13. That on said date and at all times herein mentioned, the defendant, GUERRERO, was an officer of the New York City Police Department and employed by the defendant, CITY.

14. At times mentioned herein, the officer of the New York City Police Department was acting under the color of law, to wit: the laws, statues, ordinances, rules and regulations of

the City of New York, State of New York, the United States and the Constitutions of the State of New York and United States.

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL ARREST ON BEHALF
OF PLAINTIFF JAMEAL MARLON CEPHAS**

15. Plaintiff JAMEAL MARLON CEPHAS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-14 with the same force and effect as if fully set forth at length herein.

16. That on February 13, 2024, at approximately 5:46 P.M. on the premises located at 1778 Utica Avenue between Avenue J and Avenue I, Brooklyn, New York 11234, Plaintiff JAMEAL MARLON CEPHAS was without investigation, searched without a warrant, restrained and wrongfully and falsely arrested by defendant GUERRERO.

17. The aforesaid was committed by the defendant upon the plaintiff with his awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law.

18. The subject NYCPD officer was acting within the scope of their employment as an officer of the defendant CITY and acting under the color of law.

19. At no time did JAMEAL MARLON CEPHAS resist arrest.

20. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges were false.

21. That February 13, 2024, the defendants, their agents, servants and/or employees, acted with intent to imprison the plaintiff.

22. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.

23. That the Plaintiff, without his consent or just cause, was taken into custody on February 13, 2024, at approximately 5:46 P.M.

24. The plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and still suffers and will continue for some time to come to suffer physical, emotional and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.

25. That the plaintiff continues to receive medical assistance in an effort to heal his injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.

26. As a result of the foregoing by the aforesaid defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR WRONGFUL ARREST,
ASSAULT AND BATTERY ON BEHALF OF PLAINTIFF JAMEAL MARLON
CEPHAS**

27. Plaintiff JAMEAL MARLON CEPHAS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-26 with the same force and effect as if fully set forth at length herein.

28. That on February 13, 2024, at approximately 5:46 P.M., and while in the custody of the defendants, the Plaintiff JAMEAL MARLON CEPHAS was without just cause, probable cause or provocation, and with negligent, and without investigation grabbed, shoved, searched, battered and restrained in an excessive manner and with excessive force by defendant, GUERRERO.

29. That on or about February 13, 2024, and while in the custody of the defendants the Plaintiff JAMEAL MARLON CEPHAS was intentionally grabbed, physically attacked, shoved, searched, battered, tackled, violated and humiliated, in the most egregious and excessive manner by defendant GUERRERO, who was acting within the scope of his employment and authority in such a manner as to knowingly cause injury to plaintiff.

30. Defendant GUERRERO grabbed, shoved, searched, battered, and physically attacked JAMEAL MARLON CEPHAS over the premises, without any reasonable justification or lawful purpose for the amount of force used. Defendant GUERRERO committed false imprisonment, abuse of process, wrongful arrest, use of excessive force, deprivation of civil liberties and malicious prosecution.

31. That on or about February 13, 2024 GUERRERO, acting as agents and on behalf of the CITY and NYCPD, within the scope of their employment, did intentionally, wilfully and maliciously physically attacked, grabbed, shoved, searched, assaulted and battered the Plaintiff JAMEAL MARLON CEPHAS in the most egregious and excessive matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff JAMEAL MARLON CEPHAS and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner assaulted the plaintiff and/or offensive bodily contact to the Plaintiff JAMEAL MARLON CEPHAS and caused mental and psychological injuries.

32. Upon information and belief, defendant GUERRERO acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD's Officers' unjustified use of force, because they knew to a virtual certainty that they would not be disciplined for their unlawful use of force against JAMEAL MARLON CEPHAS.

33. Upon information and belief, the defendant GUERRERO acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD Officers' unjustified use of force while effectuating arrests and to penalize individuals for questioning their authority.

34. That by reason of the aforesaid intentional physically attack and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff JAMEAL MARLON CEPHAS suffered great and permanent mental and psychological injuries and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

35. That as a result of the aforesaid physically attack and battery the Plaintiff JAMEAL MARLON CEPHAS was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

36. That at all times hereinafter mentioned the actions of CITY, NYCPD and defendant GUERRERO as described above were carried out in a deliberate, wilful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff JAMEAL MARLON CEPHAS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING/SUPERVISION/RETENTION ON BEHALF OF PLAINTIFF JAMEAL
MARLON CEPHAS**

38. Plaintiff JAMEAL MARLON CEPHAS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-37 with the same force and effect as if fully set forth at length herein.

39. That the CITY, NYCPD, their agents, servants and employees was negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officer who committed the aforementioned acts and deprivations on the plaintiff on the aforementioned dates and places and careless in hiring, retaining, training, monitoring, retraining, supervising and promoting their employees including but not limited to defendant GUERRERO, in that said police officers, as employees of CITY and NYCPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYCPD.

40. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral and negligent.

41. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officer, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.

42. Prior to said date, and at all times here mentioned, the defendant NYCPD had knowledge of facts about the police officer it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an

investigation that could have uncovered the above stated information about the employees and failed to do so.

43. That the CITY and NYCPD failed to exercise due care and caution in their hiring, retaining, training and/or promoting practices in that CITY and NYCPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Police Department Guidelines.

44. That by reason of the above, the Plaintiff JAMEAL MARLON CEPHAS was injured in mind and body as he was arrested, prosecuted and rendered sick, sore and damaged.

45. That at all times hereinafter mentioned the actions of CITY, NYCPD and all defendants herein as described above were carried out in a deliberate, wilful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff JAMEAL MARLON CEPHAS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOUR CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS ON BEHALF OF PLAINTIFF JAMEAL MARLON
CEPHAS**

47. Plaintiff JAMEAL MARLON CEPHAS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 46 with the same force and effect as if fully set forth at length herein.

48. At all times mentioned herein and above, Defendants CITY and NYCPD employed defendant GUERRERO as a police officer and was acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

49. Plaintiff JAMEAL MARLON CEPHAS is and at all times relevant herein, a citizen of the United States and a resident of Kings County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

50. That on or about February 13, 2024, Defendants CITY, NYCPD and defendant GUERRERO, without probable cause, reasonable cause or legal justification, did physically attack, search and commit a battery and grab the Plaintiff JAMEAL MARLON CEPHAS without a court authorized arrest warrant or search warrant and defendants did physically attack Plaintiff JAMEAL MARLON CEPHAS in an unlawful and excessive manner.

51. That on the aforementioned dates and places, the above actions of the defendant GUERRERO, acting within scope of their employment as an NYCPD officer, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- i. Freedom from assault;
- ii. Freedom from battery;
- iii. Freedom from illegal search and seizure;
- iv. Freedom from false arrest;
- v. Freedom from malicious prosecution;
- vi. Freedom from the use of excessive force during the arrest process;
- vii. Freedom from unlawful imprisonment;
- viii. Freedom from loss of liberty; and
- ix. Freedom from illegal search.

52. In addition to the above, Defendants CITY and NYCPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct their police officers, including the officers

involved in this case and any and all unnamed officers involved in the physically attacking and battery of plaintiff, regarding the protection of the constitutional rights of citizens.

53. Defendants CITY, NYCPD and GUERRERO, subjected Plaintiff JAMEAL MARLON CEPHAS to such deprivation in a malicious, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff JAMEAL MARLON CEPHAS's rights and with deliberate indifference to the United States Constitution.

54. The direct and proximate result of the Defendants CITY, NYCPD and GUERRERO acts are that Plaintiff JAMEAL MARLON CEPHAS has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

55. That by reason of the foregoing, Plaintiff JAMEAL MARLON CEPHAS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

CLAIM FOR PUNITIVE DAMAGES

56. The Plaintiff makes a claim for punitive damages against the defendants in this action.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, together with the costs and disbursements of this action.

Dated: New York, New York
June 27, 2024

REDMOND LAW FIRM, PLLC

By: _____

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

VERIFICATION

STATE OF NEW YORK }

} ss:

COUNTY OF NEW YORK }

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am a member of the firm REDMOND LAW FIRM, PLLC , attorneys of record for the plaintiff in the within action; I have read the foregoing

COMPLAINT

and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true. The reason this verification is made by me and not by the plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my knowledge, are as follows: entire file maintained in your deponent's offices, investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
June 27, 2024

By: 
Cornelius Redmond, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

JAMEAL MARLON CEPHAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and
MARIO GUERRERO,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

REDMOND LAW FIRM, PLLC
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous



CORNELIUS REDMOND, ESQ.
REDMOND LAW FIRM, PLLC

☐ Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

☐ Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

REDMOND LAW FIRM, PLLC
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989